THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH
Court No-II
(Through Hybrid Mode)

Item 12

CP(CAA) No. 22/Chd/Hry/2022
(2nd Motion)

Under Section 230-232, CA 2013,

In the matter of:

Adva Optical Networking India Pvt. Ltd. …Transferor Company

And

Adva IT Solutions India Pvt. Ltd. ...Transferee Company

Present: Mr. Shivam Narang, Advocate for the petitioner Company.
Mr. Yogesh Putney, Senior Standing Counsel for the Income Tax Department.

We have heard the submissions made by the counsel for the petitioner Companies as well as for the Income Tax Department. Counsel for the Income Tax Department has submitted that they have filed their report. In this proposal the transferor Company was situated at Bangalore and the transferee company was situated in Gurugram within the jurisdiction of NCLT Chandigarh. The Senior Standing counsel for the Income Tax Department has submitted that they have filed their no objection to proceed with the proposal and also clarified that there is no outstanding demand as on date against the transferee Company. The counsel for the petitioner has submitted that the appointed date proposed is 01.01.2018. The RD/RoC in its report has raised objection to the appointed date i.e.01.01.2018, as the same is ante-dated beyond a year. This Tribunal is of the view that the appointed date should be 01.04.2023. Since the petition from the very beginning is dealt in Court No.1, first motion order was passed by Court No.I and Second Motion notice was issued by Court No.I, the opportunity is afforded to

the petitioner Companies to make a mention before Court No.I to take transfer of this matter from Court No.II to Court No.I.

Let the matter be posted for 12.01.2024.

Sd/-

(Umesh Kumar Shukla)
Member (Technical)

Sd/-

(Dr. P.S.N Prasad)
Member (Judicial)

December 22, 2023
Priyanka